



United States Department of the Interior
BUREAU OF LAND MANAGEMENT
National Headquarters
Washington, DC 20240
<https://www.blm.gov>



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION Over \$250,000

This document sets forth the justification and approval as required by 13.106-1(b).

1. Identification of the Agency and the Contracting Activity:

The Department of the Interior, Bureau of Land Management (BLM), Division of Wild Horses & Burros, requests Headquarters Acquisitions, Wild Horses & Burro team, to contract on a limited or sole source basis.

2. Nature and/or description of the action being approved:

Award a bridge contract to Nevada Department of Corrections (NV DOC) to continue uninterrupted services of contract 140L3923P0204 which expires on 3/30/2025. The requested period of performance is 3/31/2025 to 3/30/2026. FAR clause 52.217-8, Option to Extend Services, will be included.

3. A description of the Supplies or Services required meeting the Agency's needs, including the estimated value:

The BLM Wild Horse and Burro (WH&B) Program in Nevada has a requirement for a holding facility for wild horses and burros that are gathered from public lands administered by the BLM. The Facility needs to be capable of maintaining, sorting, training, adoption, and training/preparing animals for adoption.

The above contract provides off-range corral services with a facility capable of maintaining a minimum of [REDACTED] to a maximum of [REDACTED] WH&Bs. In addition to providing feed and care of the WH&Bs, NV DOC will provide animal training services and veterinarian services. The trained animals can be made available for adoption/sale to the general public or transfer trained animals to other federal, state, or local governments. NV DOC will host adoption events for saddle trained animals for the general public. The current contract expires on 3/30/2025. The estimated cost for this new, one year award is [REDACTED].

4. An identification of the statutory authority permitting other than full and open competition:

X 41 U.S.C. 1901 – Simplified acquisition procedures (use when the simplified procedures for purchases of property and services for amounts (2) greater than the simplified acquisition threshold but not greater than \$5,000,000.00, if under FAR Part 13.5.)

 41 U.S.C 1903 – Special emergency procurement authority (applies when in support of a contingency operation as defined in section 101(a) of title 10 or to facilitate the defense against or recovery from nuclear, biological, chemical, or radiological attack against the United States).

5. **A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited:**

There are no existing facilities available to receive all the animals currently at this facility. If the bridge contract cannot be awarded to NV DOC to continue providing these services, BLM must remove the animals from the facility. Removing the animals will require considerable time and expense. A minimum of 6 months is necessary before the animals can be moved. The logistics involved to achieve this is complex and includes veterinarian services, arranging transportation, and staff availability.

6. **A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable:**

NV DOC submitted a price proposal in the amount of [REDACTED]. Pricing includes several elements:

- Care and feeding
- Training (saddle, pack, halter)
- Veterinarian services (labor rate, drugs, antibiotics, lab fees)

The contracting officer determined the price to be fair and reasonable. The determination is based on a variety of price analysis techniques. See Price Analysis at C22 and the Source Selection Decision Document at C25.

- Care & feeding- Pricing was compared to current contract prices and CPI data was used to develop a negotiation objective. NV DOC revised their price proposal, and the final revised pricing is fair and reasonable.
- Training- Proposed prices were compared to current market price information from multiple sources.
- Veterinary services- Proposed pricing was compared to current contract pricing and current market price information from multiple sources.

7. **A description of the Market Research conducted (see FAR Part 10) and the results**

or a statement of the reason Market Research was not conducted:

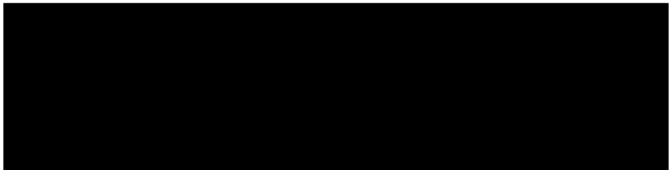
Very little market research was conducted for this effort. Conducting extensive new research and findings would not result in a new award due to the lengthy approval process for potential awardees. The National Environmental Policy Act (NEPA) EA process for new contractors can take six to twenty-four months.

8. **A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the Supplies or Services required:**

BLM is following the competitive acquisition process. This contract will remain in effect until a replacement contract or cooperative agreement is awarded and the animals are relocated.

9. **Certification:**

I certify that any supporting data that is the responsibility of technical or requirements personnel (i.e. verifying the Government's minimum needs or schedule requirements or other rationale for other than full and open competition) and which form a basis for the justification have been certified as complete.

(Signature) ) _____

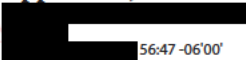
(Type or Print Name): 
Contracting Officer's Representative

I certify that the justification is accurate and complete to the best of my knowledge and belief:

(Signature)   (Date)  _____

(Type or Print Name): 
Contracting Officer

Reviewed/Concur/Approved by: (if applicable)

(Signature)   (Date)  _____

(Type or Print Name): 
Chief of the Contracting Office

Competition Ad

(Signature) _____ 

(Type or Print Name)
Bureau of Land